

# The Civil Jails Act, 1874

Source: <https://indiankanoon.org/doc/149822037/>

[Skip to main content](#)

[Legal Document View](#)

[Tools for analyzing structure and cite text of judgments](#)

[Unlock Advanced Research with](#)

[PRISM](#)

[AI](#)

[Integrated with over 4 crore judgments and laws ? designed for legal practitioners, researchers, students and institutions](#)

-

[Know your Kanoon](#)

-

[Doc Gen Hub](#)

-

[Counter Argument](#)

-

[Case Predict AI](#)

-

[Talk with IK Doc](#)

-

...

[Upgrade to Premium](#)

[Cites

0

, Cited by

4

]

State of Maharashtra - Act

The Civil Jails Act, 1874

MAHARASHTRA

India

The Civil Jails Act, 1874

Act 2 of 1874

Published on 15 January 1875

Commenced on 15 January 1875

[This is the version of this document from 15 January 1875.]

[Note: The original publication document is not available and this content could not be verified.]

The Civil Jails Act, 1874

Bombay Act

No. 2 of 1874

[15th January, 1875]

This Act is extended and shall be in force, throughout the State (vide Bombay 23 of 1959, section 4).

For Statement of Objects and Reasons, see Bombay Government Gazette, 1873, Part 5, page 290; for first Report of the Select Committee, see Bombay Government Gazette, 1874, page 82; for second Report of the Select Committee see Bombay Government Gazette page 121; and for Proceedings in Council, see Bombay Government Gazette, 1873, page 483, and see Bombay Government Gazette, 1874, pages 111, 152 and 154.

The short title was given by the Bombay Short Titles Act, 1921 (Bombay 2 of 1921).

Civil jails in the Presidency of Bombay outside the city of Bombay are administered under Sections 9 to 16 of this Act as

amended by subsequent enactments, see the Prisons Act, 1894 (9 of 1894), Section 1(3), Central Acts.

An Act for the regulation of jails in the [state of Bombay excluding Greater Bombay]

[These words were substituted for the words 'City and Presidency of Bombay' by Bombay 23 of 1959, Section 4(2).]

and the enforcement of discipline therein.

Preamble

[Repealed [Act IX of 1894.]

[Central Acts.]

Parts I and II. Preliminary; Classes of Jails.

1.

to 7. [Repealed [Act IX of 1894.]

[Central Acts.]

Part III ? Civil Jails

8.

[ Application.

[Section 8 was inserted by Bombay 23 of 1959, Section 4(2).]

- This Act shall apply to Civil Jails in the State of Bombay outside Greater Bombay.]

9.

Civil jail to be at seat of each District Court, and may be at other places.

- There shall be a, civil jail at the seat of the District Court for each district created under section 3 of [Act XIV of 1869]

[The Bombay Civil Courts Act, 1869.]

[or any corresponding law for the time being in force in any part of the State]

[These words were Inserted by Bombay 23 of 1959, Section 4 (2).]

: Provided that it shall be in the power of the [ [State]

[The words 'Provincial Government' were substituted for the word 'Government in Council' by the Adaptation of Indian Laws Order in Council.]

Government] to establish civil jails at other convenient places.

10.

Nazir of District Court to be keeper of civil jail and to have establishment under him.

- The nazir of the District Court [(or the corresponding officer by whatever name called, hereinafter referred to as "the nazir")]

[These words were Inserted by Bombay 23 of 1959, Section 4 (2).]

or of the chief Civil Court at the place where the civil jail is located shall be ex-officio keeper of the civil jail, and shall be responsible for the safe custody of the prisoners and for the preservation of cleanliness and good order in the jail and among the prisoners, and shall have such establishment under him as the District Judge, with the sanction of the [ [State]

[The words 'Provincial Government' were substituted for the word 'Government in Council' by the Adaptation of Indian Laws Order in Council.]

Government], may direct.

11.

Judge to visit civil jail.

- The judge or the Assistant Judge of the district in which a civil jail is situated shall visit such civil jail at least once in each month, and shall issue in writing such orders connected with the economy of the jail, the good management, health and accommodation of the prisoners, as he may think fit.

He shall record the date of his visit, and any remarks he may have to make, in a book to be kept for the purpose.

12.

Medical officer to attend jail.

- A medical officer to be appointed by the [ [State]

[The words 'Provincial Government' were substituted for the word 'Government in Council' by the Adaptation of Indian Laws Order in Council.]

Government] shall attend the civil jail, and shall be bound to offer such advice to the District Judge, or other officer in charge of the civil jail, as may seem expedient to him with regard to the sanitary state of the jail and of the prisoners.

Remedies administered at expense of [State]

[This word was substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government.

He shall also administer remedies at the expense of the [ [State]

[The words 'Provincial Government' were substituted for the word 'Government in Council' by the Adaptation of Indian Laws Order in Council.]

Government] to the sick:

Provided that nothing contained in this section shall prevent a prisoner in a civil jail from employing at his own expense any medical man he may think fit to consult.

13.

Strangers may be admitted to civil jail.

- The civil jail shall be opened daily for the admission of those wishing to visit prisoners from 9 a.m. till 3 p.m, and no stranger shall be allowed to remain in the civil jail beyond the abovementioned hours except by permission of the Judge, the Assistant Judge of the district, or on the recommendation of the medical officer by the permission of the nazir in charge of the jail.

14.

Subsistence of prisoners in civil jails.

(1)

Prisoners, in the civil jail may either make their own arrangements for their subsistence, or may, within the amount of subsistence-money or batta furnished by the party at whose suit they are detained, require the nazir to furnish their food and other necessities out of the subsistence-money fixed for them by the Court by which they are committed:

Provided that excess in the use of intoxicating liquors or drugs be strictly prohibited. A tariff of prices approved by the District Judge on the first day of each month shall be kept in each civil jail and shall be accessible to all the prisoners.

(2)

Every civil prisoner unable to provide himself with sufficient clothing and bedding shall be supplied by the nazir with such clothing and bedding as may be ordered by the Judge or Assistant Judge under the provisions of section 11 of this Act.

When any such prisoner has been committed to prison in execution of a decree in favour of a private person, such person, or his representative, shall be liable to pay to the nazir on demand in writing the cost of the clothing and bedding so supplied to the prisoner; and in default of such payment the prisoner shall be released.

15.

Disposal corpse of prisoner dying in civil jail.

- When a prisoner shall die in the civil jail, the nazir shall immediately report such death to the nearest Magistrate, who shall thereupon inquire into the cause of such death, and make a written report thereon to the Inspector General of Prisons, and the corpse of such prisoner shall, after the medical officer appointed under section 12 [\* \*]

[The words 'of this Act' were repealed by the Bombay General Clauses Act, 1886 (Bombay 3 of 1886), Schedule B. This Schedule has been printed as an Appendix to the Bombay General Clauses Act, 1904 (Bombay I of 1904).]

has certified to his death, be made over to his relatives or friends [if any be present and willing to take charge of it]

[These words were substituted for the words 'or in failure of their taking the corpse, it shall be buried, burnt or otherwise disposed of at the expense of the Civil Jail fund, as hereinafter provided' by Section 1, Bombay Jails Amendment Act, 1882 (Bombay 2 of 1882).]

.

[If no relatives or friend of a prisoner who has died in prison is present and willing to receive and dispose of his corpse, it shall be buried, burnt or otherwise disposed of.]

[This clause was added by Section 1, Bombay Jails Amendment Act, 1882 (Bombay 2 of 1882).]

16.

[ Disposal of subsistence money in hand on prisoner's death or release.

[Section 16 was substituted by Section 2, Bombay Jails Amendment Act, 1882 (Bombay 2 of 1882).]

- If, at the time of a prisoner's death or release, any of the subsistence money furnished by the party at whose suit such prisoner was detained remains unexpended, notice shall be forthwith given to the party paying the same, and the balance so remaining unexpended shall be returned to such party or his representatives:

Provided that he or they claim payment thereof within three months/from the date of such notice; failing which such

balance shall become the property of [the State Government].

Cost of disposing of corpses and other expenses connected with civil jail to be provided by [State]

[This word was substituted for the word 'Provincial' by the Adaptation of Laws Order, 1950.]

Government

The cost of disposing of the corpses of deceased prisoners under clause 2 of the last preceding section, and of procuring comforts for sick prisoners, and generally for the maintenance of the civil jail, shall be provided by [the [State]

[The words 'the Provincial Government' were substituted for the word 'Government' by the Adaptation Indian Laws Order in Council.]

Government] subject to such rules as [the [State]

[The words 'the Provincial Government' were substituted for the word 'Government' by the Adaptation Indian Laws Order in Council.]

Government] may from time to time prescribe in this behalf.]

Parts IV to XIV [Criminal Jails; Superintendents of Criminal Jails, and their Duties; Jailors and their Duties; Medical Officer: Prison Offences; Offences in Relation to Jails; Visits to, and Correspondence of, Prisoners; Discharge of Prisoners; Visitors of Jails; Extramural Gangs; Miscellaneous.]

17.

to 52. [Repealed [Act IX of 1894.]

[See Central Acts.]

]

Notifications

Amended by G. N., J. D., No. 8549, dated 22nd December, 1894.

Amended by G. N., J. D., No. 8842, dated 18th December, 1895.

G. N., J. D., dated 15th April, 1875 (B. G., Part 1, page 370) - Under the provisions of section 9 of Bombay Act No. II of 1874 (An Act for the Regulation of Jails in the City and Presidency of Bombay and the enforcement of discipline therein), the Honourable the Governor in Council is pleased to declare the establishment of Civil jails at the following places; -

Poona

[\* \*]

[Not printed as it pertains to Mysore and Gujarat.]

Ahmednagar

[\* \*]

[Not printed as it pertains to Mysore and Gujarat.]

Dhulia

Ratnagiri

Sholapur

Thana

Satara

[\* \*]

[Not printed as it pertains to Mysore and Gujarat.]

[\*

[Not printed as it pertains to Mysore and Gujarat.]

[\* \*]

[Not printed as it pertains to Mysore and Gujarat.]

[\*

[Not printed as it pertains to Mysore and Gujarat.]

\*]

[Not printed as it pertains to Mysore and Gujarat.]

2.

Under the provisions of section 12 of the Act, the civil Surgeons at the several stations are appointed to attend the Civil Jails at their respective stations, and to perform the duties required by sections 12, 13 and 15 of the Act.

G. N., J. D., No. 3814, dated 31st July, 1905 (B. G., Part 1, page 977) - Pursuant to section 9 of Bombay Act II of 1874, and in supersession of Government Notification in the Judicial Department, No. 895, dated the 5th February 1884 the

Governor in Council is pleased to declare the establishment of a Civil Jail at Nasik, with effect from the 1st October 1905.

G. N., H. D., No. CJB-2754/62052-B(a), dated 15th February, 1956 (B. G., Part 4-B, page 194) - In exercise of the powers conferred by section 9 of the Civil Jails Act, 1874 (Bombay II of 1874), the Government of Bombay hereby declares that the building constructed in the vicinity of the Civil Court Building at Sangli shall be the Civil Jail for the South Satara District.

G. N., J. D., No. 3815, dated 31st July, 1905 (B. G., Part 1, page 985) - In exercise of the powers conferred by section 12 of Bombay Act II of 1874, the Governor in Council is pleased to appoint the Civil Surgeon of Nasik to be the Medical Officer of the Civil Jail at Nasik.

G. N., H. D., No. CJB-2754/62052-B(b), dated 15th February, 1956 (B. G., Part 4-B, page 194) - In exercise of the powers conferred by section 12 of the Civil Jails Act, 1874 (Bombay II of 1874), the Government of Bombay hereby appoints the Civil Surgeon of Sangli to be the Medical Officer of the Civil Jail for the South Satara District.

Related AI tags, queries and research notes

Translation